ORDINANCE NO. 513

AN ORDINANCE AMENDING ORDINANCE NO. 396, REGULATING THE ACTIVITIES OF DANGEROUS DOGS AND POTENTIONALLY DANGEROUS DOGS AND FOR OTHER PURPOSES.

BE IT ORDAINED BY THE CITY COUNCIL OF RECTOR, ARKANSAS, as follows:

SECTION 1: Definitions.

The following words and phrases shall be added, for the purpose of this ordinance, have the following meanings:

Owner. Every person, firm, partnership or corporation owning, keeping of harboring a dog within the geographical limits of the city.

Unconfined. A vicious animal is unconfirmed as the term is used in this division if such animal is not securely confined indoors or confined in a securely enclosed and locked pen or structure on the premises of the owner.

The following words and phrases shall be revoked, for the purposes of this ordinance, have the following meanings:

Vicious Dog. A dog with the propensity, tendency or disposition of attack, cause injury or otherwise endanger the safety of persons, domestic animals and other property.

SECTION 2: Section 3. Shall be amended as follows:

Keeping of vicious dogs prohibited: It shall hereafter be unlawful for any person, firm or corporation to keep within the corporate limits of the city any vicious dog unless the animal is securely confined indoors or confined within a pen upon the premises of the owner. It shall be a violation of this division to permit the dog to run at large and thereby constitute a danger to other persons or animals. Any person shall have the right to kill any such dog which attacks or attempts to attack that person or any other person or domesticated animal without in any way being liable to the owner or owners of such dog.

SECTION 3: Section 4 shall be amended as follows:

Regulations for keeping vicious dogs. No person owning, harboring or having the care of a vicious dog shall allow or permit such dog to go unconfined on the premises of such person, nor shall the person allow or

permit such animal to be loose unless it is securely leashed with a leash no long than four (4) feet in length. No person shall permit a vicious dog to be kept on a chain, rope or other type of leash outside its kennel or pen unless that person is in physical control of the leash. A vicious dog may not be leashed to an inanimate object such as trees, posts, buildings, etc., while the dog is unattended. In addition, all vicious dogs on a leash outside their kennel or pen must be muzzled by a muzzling devise sufficient to prevent such animals from biting persons or other animals.

SECTION 4: Section 9 shall be amended to read as follows:

Penalty: Any person, firm or corporations violating this division shall be deemed guilty of a misdemeanor and upon conviction thereof shall be punished by a fine of not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00).

SECTION 5: All ordinances or parts of ordinances in conflict herewith are hereby repealed.

SECTION 6: In order to apply these provisions to the citizens of Rector, Arkansas, as soon as possible, an emergency is declared to exist and this Ordinance shall be in full force and effect from and after its passage, approval and publication as required by law.

DATED this 9 day of January, 2006

CITY OF RECTOR, ARKANSAS

By: _____
Mayor

ATTEST:

_____
City Clerk